(vi) Provide for the care of paupers, the aged, the sick, persons of unsound mind, abandoned minors, abused children, disabled persons, juvenile delinquents, drug dependents, and other needy and disadvantaged persons, particularly children and youth below eighteen (18) years of age; subject to availability of funds, establish and support the operation of centers and facilities for said needy and disadvantaged persons; and facilitate efforts to promote the welfare of families below the poverty threshold, the disadvantaged, and the exploited;

(vii) Establish and provide for the maintenance and improvement of jails and detention centers, institute a sound jail management program, and appropriate funds for the subsistence of detainees and convicted prisoners in the province;

(viii) Establish a provincial council whose purpose is the promotion of culture and the arts, coordinate with government agencies and non-governmental organizations and, subject to the availability of funds, appropriate funds for the support and development of the same;

(ix) Establish a provincial council for the elderly which shall formulate policies and adopt measures mutually beneficial to the elderly and to the province; and subject to the availability of funds, appropriate funds to support programs and projects for the elderly; and provide incentives for non-governmental agencies and entities to support the programs and projects of the elderly; and

(5) Exercise such other powers and perform such other duties and functions as may be prescribed by law or ordinance.

RULE – III

THE PRESIDING OFFICER AND ITS AUTHORITY

Section 5. *The Presiding Officer* – The vice governor shall be the presiding officer of the Sangguniang Panlalawigan. The presiding officer shall vote only to break a tie. He shall certify within ten (10) days from the passage of the ordinances enacted and resolutions adopted by the sanggunian in the session over which he presided. He shall be an ex-officio member of all the standing committees of the sanggunian. As a composite member, however, he shall participate in the discussions but is not entitled to vote.

The Vice-Governor Shall:

(1) Be the approving authority of all disbursement vouchers and sign all warrants drawn on the provincial treasury for all expenditures appropriated for the operation of the Sangguniang Panlalawigan. As such he shall be responsible in the management, utilization, and supervision of funds appropriated for the operation of the legislative department (Section 39 of the Manual on the New Government Accounting System for Local Government Units prepared by the Commission on Audit (COA) and Supreme Court decision in the case of Ramon M. Atienza vs. Jose T. Villarosa, G.R. No. 161081, 10 May 2005). He shall be empowered to issue Allotment Release Order (ARO) for the operation of the department in the light of the constitutionally guaranteed separation of the executive and legislative powers and shall sign and approved all required budget and procurement forms for the utilization of funds intended for the operation of the Sangguniang Panlalawigan;

(2) Subject to civil service law, rules and regulations, appoint all officials and employees of the Sangguniang Panlalawigan, except those whose manner of appointment is specifically provided by law;

(3) Exercise exclusive appointing, disciplinary, and supervisory authority over all officers and employees in the legislative department. As such he shall:

a) Require a daily record of attendance of all officers and employees under him to strictly observe the prescribed office hours (Section 1, Rule XVII of the Omnibus Rules Implementing Book V of Executive Order No. 292 and other Pertinent Civil Service Laws). Personnel under legislative contract of services, however, shall not be required to submit Daily Time Record

By: PROVINCE OF SIBUGAY AUTHENTICATED OSSEC Date: